EXTRACTS relating to the Bank's right of way over a portion of the premises known as Clarence House on the termination of Miss F.E.Cole's lease of the said premises on the 25th December, 1915.

Hugh C.Smith, Esq. and Another

to

The Governor & Company of The Bank of England.

CONVEYANCE of Land at Roehampton in the County of Surrey.

Dated 24th December, 1907.

"As to the strip of land coloured blue on the Plan "drawn in the margin hereof (hereinafter called the blue land) "to an Indenture of Lease (hereinafter called the said Lease) "dated the twenty fourth day of July One thousand eight hundred "and ninety five and made between the Vendor of the one part and "Fanny Eliza Cole of the other part whereby the messuage and "premises known as Clarence House with the gardens thereof "(which include the blue land) were demised unto the said Fanny "Eliza Cole for the term of Twenty one years from the twenty "fifth day of December One thousand eight hundred and ninety four "determinable nevertheless as therein mentioned." . . . .

. . . . . .

"AND THIRDLY full and free right and liberty for the "Bank their successors and assigns and all persons expressly or "impliedly authorised by them at all times and for all purposes "and with or without horses carts carriages and motor vehicles "to go pass and repass over and along the blue land but so that "the right of way last hereinbefore granted shall not be

"exercised

"exercised in any way or to any extent (except with the previous "consent in writing of the Vendor his heirs or assigns) during "the continuance of the said term of years granted by the said "Lease and so also that such last mentioned right of way shall "be subject to the provisions hereinafter contained in relation "to the substitution therefor of another right of way." - - -

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"First that it shall be lawful for the Vendor his heirs "or assigns owner or owners for the time being of the said piece "of land lying between the said boundary line marked A.B. and "Priory Lane aforesaid at any time during the life of the Vendor "or within twenty one years after his death to close the said "right of way hereinbefore granted over the blue land upon con- "dition that the Vendor his heirs or assigns owner or owners as "aforesaid shall at his or their own expense in all respects "make a legal and effectual grant to the Bank their successors "or assigns of a similar right of way over a strip of land not "less in width than the blue land from Priory Lane aforesaid to "the said piece of land hereinbefore assured at some point to "the North of the line shewn on the said plan by a dotted blue "line Secondly that the Bank their successors and assigns shall "not except with the previous consent in writing of the Vendor "his heirs or assigns owner or owners as aforesaid during the "continuance of the said term of years granted by the said Lease "make up into a road the blue land or any strip of land which "may be substituted therefor as hereinbefore provided Thirdly "that the Bank their successors and assigns shall not except "with the consent in writing of the Lessee or Lessees for the "time being under the said Lease use the blue land as a right of "way during the continuance of the said term of years Fourthly "that (subject as hereinbefore provided) if and when the Bank "their successors or assigns shall desire to use the blue land "or any strip of land which may be substituted therefor as "hereinbefore provided as a road they shall make up the same "into a road at their own expense in all respects and shall

"thereafter

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"thereafter maintain the same at the like expense until the "same shall be taken over by the Local Authority (if that event "shall happen) PROVIDED nevertheless and it is hereby agreed "that if the Vendor his heirs or assigns owner or owners as "aforesaid shall in exercise of the power hereinbefore con- "tained substitute another strip of land for the blue land after "the blue land shall have been made up into a road by the Bank "their successors or assigns then the Vendor his heirs or "assigns owner or owners as aforesaid shall as a condition of "such substitution repay to the Bank their successors or assigns "all moneys which may have been expended or paid by them for the "purpose of forming the blue land into a road."

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